**Uber – Blacklane**

MN-20018

# Phase 1 Determination

## Acquisition may be put into effect

14 July 2026

# 1. Determination and statement of reasons

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| **Notified acquisition** | Uber Technologies, Inc (**Uber**) proposes to acquire 100% of the issued share capital in Blacklane GmbH (**Blacklane**) by way of a share purchase and transfer agreement (the **Acquisition**). Following completion, Blacklane will become a wholly owned indirect subsidiary of Uber. |
| **Determination** | The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the C*ompetition and Consumer Act 2010* (Cth) that the Acquisition may be put into effect. |
| **Parties to the Acquisition** | The acquirer, Uber, is a US-based ride-hailing and food delivery platform founded in 2009 that operates in over 70 countries, including across Australia, where it launched in 2012.<br><br>Uber offers a range of products on its ride-hailing platform with different levels of service, each operating largely on an on-demand model. These products include its core products, Uber X, Uber X Share, Uber XL and Uber Comfort, as well as its premium product Uber Black.<br><br>The target, Blacklane, is a German-headquartered global luxury chauffeur platform, founded in 2011 and which operates in over 50 countries. Blacklane's platform connects customers with licensed local chauffeurs offering a high level of service and manages the end-to-end customer experience (booking, pricing, payment, support).<br><br>Blacklane provides airport transfer, city-to-city and by-the-hour limousine services. These services are available in Adelaide, Brisbane, Gold Coast, Ipswich, Melbourne, Perth, and Sydney. |
| **Overlap and relationship between the parties** | Uber and Blacklane (together, the **Parties**) both:<br>• supply premium passenger road transport services to consumers via an online or application-based platform, and<br>• acquire services from drivers.<br><br>Uber's current premium offering in Australia is known as 'Uber Black'. Information before us indicates Blacklane's service level is higher than that offered by Uber Black. Blacklane also has more rigorous eligibility and training requirements for its chauffeurs than Uber Black does for its drivers.<br><br>Uber recently launched 'Uber Elite', which offers a similar level of service to that offered by Blacklane, in 3 cities in the United States. It is possible that Uber Elite may also be launched in Australia. |
| **Reasons for determination** | When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the C*ompetition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers.<br><br>For more information about the ACCC's approach to considering |

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| | notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines.<br><br>In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and feedback received from third parties.<br><br>The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings.<br><br>• Blacklane has a very limited presence in Australia.<br><br>• The Parties are not currently close competitors. Uber Black is generally not viewed by relevant customers as substitutable with the luxury service offered by Blacklane. If Uber Elite was launched in Australia, the parties would compete more closely in the geographic area(s) in which that service was made available.<br><br>• Even if luxury chauffeur services fall within a premium passenger services market, the market share aggregation arising from the Acquisition is estimated to be low. In relation to any narrower market for luxury chauffeur services, due to the limited presence of Blacklane in Australia, the loss of future potential competition between Uber (through the possible launch of Uber Elite) and Blacklane is not likely to be substantial.<br><br>• There are multiple alternative suppliers of premium passenger road transport in Australia, including several with a national presence. The competition that Uber faces, in terms of supplying premium passenger road transport services and acquiring services from drivers, is not significantly impacted by the Acquisition.<br><br>• While the merged entity is likely to benefit from Uber's integration of Blacklane into the Uber booking platform, rival chauffeur providers would continue to have alternative channels to reach their customer base and are accordingly unlikely to be foreclosed.<br><br>• Similarly, while Uber may be able to link ride hail with chauffeur services in contracts with corporate customers, this would be unlikely to foreclose rival chauffeur providers from competing due to a range of factors, including the availability of alternative routes to market for chauffeur operators. |
| **Applications for review** | A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal. |

**Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act**